

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION SUPPORTING THE CONTINUATION OF THE OPTIONAL ONE PERCENT SALES TAX FOR CALENDAR YEARS 2019 THROUGH 2022 AND PLEDGING THAT ALL REVENUES DERIVED FROM THIS TAX WILL BE USED FOR PROJECTS DESCRIBED IN THIS RESOLUTION."

WHEREAS, Wyoming statutes allow cities and counties in Wyoming to impose an Optional One Percent Sales Tax; and

WHEREAS, the Optional One Percent Sales Tax has been in effect in the City of Cheyenne and Laramie County since 1978 and has been used to finance many improvements in the county and its communities, primarily for the rebuilding, upgrading and maintenance of county roads, city streets and traffic safety systems; and

WHEREAS, the efficiency and response capabilities of the City Fire & Rescue and Police Departments have been dramatically upgraded and the tax continues to be necessary to allow these Departments to continue to provide vehicles and equipment for public safety projects and services; and

WHEREAS, the health and safety of the community and federal rules dictate that storm water drainage systems be maintained, developed, and improved; and

WHEREAS, the Public Works Department, Community Recreation & Events Department, the City County Health Department, the Cheyenne Animal Shelter, Human Service Agencies, the Cheyenne Airport Board, and the Cheyenne- Laramie County Economic Development Joint Powers Board need the funding available through the continuation of this Optional One Percent Sales Tax to provide services and upgrade facilities; and

WHEREAS, this funding has been instrumental to economic development which brings jobs to Cheyenne; and

WHEREAS, the cost of the necessary improvements, facilities, equipment and services is well beyond the capabilities of the City of Cheyenne without the continuation of the Optional One Percent Sales Tax; and

WHEREAS, it has been the practice of the Governing Body of the City of Cheyenne to define the purposes for which these tax revenues would be used and to recognize that anticipated improvements and expenditures are subject to availability of funds; and

WHEREAS, the elected officials are accountable for the use of these revenues; and

WHEREAS, accountability is dependent on verification of optional sales tax expenditures and interpretation of this resolution.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that it supports the passage of the Optional One Percent Sales Tax for calendar years 2019 through 2022.

BE IT FURTHER RESOLVED that if the Optional One Percent Sales Tax is renewed, the revenues received are to be placed into a special fund to be used solely for one percent sales tax projects.

BE IT FURTHER RESOLVED that the following list designates projects that are to be funded from the Optional One Percent Sales Tax:

STREET AND ROAD MAINTENANCE AND CONSTRUCTION: \$34,000,000 (80%)

	ESTIMATED COST	Project Name and Location (Items 1 through 6 not listed in priority sequence)
1.	\$18,200,000	City street and pavement maintenance and improvements, including construction, reconstruction, renovation, and grant match for maintenance projects (i.e. overlay, chip/slurry/micro/crack seals, traffic signals, and concrete work). These funds are necessary to ensure that the condition of city pavements can be maintained and improved to preclude more costly total reconstruction.
2.	\$4,500,000	Snow removal, street cleaning, and street maintenance materials (i.e. asphalt mix, sealers, ice melt material, sand, salt, gravel), equipment, facilities, and grant match for materials, equipment, and facilities.
3.	\$2,900,000	Traffic Safety Improvements including replacing/upgrading traffic signals, signal controllers and signs, grant match for traffic improvements, and funding for traffic signs, posts, paint, striping, equipment, and facilities.
4.	\$2,200,000	Administration and management of one percent sales tax projects. Partially funds administrative costs of project management, construction management, engineering, pavement management and project communications with the public.
5.	\$2,200,000	Construction, maintenance, and repair of storm sewers, culverts, drainage channels, detention ponds, and grant match for drainage projects. This funding is necessary to ensure routine repair of drainage facilities preventing damage to public and private property while meeting federal requirements including costs associated with municipal separate storm sewer systems (MS4) permitting.
6.	\$4,000,000	Funding designated for projects to be designed and constructed as listed below. This funding may be used for reconstruction, widening, resurfacing, drainage repairs and improvements, rehabilitation, improvements to accommodate increased traffic, state or federal grant match for projects, or other improvements deemed necessary by the City Engineer. Funding to complete a priority project will be secured and verified prior to making remaining funds available for the next priority project, other road projects, or road maintenance.
	Priority 1	Replace and widen bridge on 5 th Street over Crow Creek. Needed to accommodate increased traffic volumes and improve pedestrian safety and connectivity.
	Priority 2	Widen East Dell Range between College Drive and Whitney Road. Needed to accommodate increased traffic volumes. Will compliment County and State projects currently in the planning process.
	Priority 3	Realign Missile Drive at 19 th Street. Adds new bridge over Crow Creek and improves safety by providing perpendicular intersection and adding pedestrian corridor.

OTHER PROJECTS AND AGENCIES: \$8,500,000 (20%)

- \$1,233,000 (2.901%) **Fire and Rescue Department for fire protection and training facilities maintenance and development, fire equipment and emergency medical equipment and supplies, communications equipment, training, protective clothing, medical evaluations, computer and software upgrades, vehicles and matching grant opportunities.** This funding is critical in ensuring firefighters are trained and equipped to provide fire and rescue protection services.
- \$2,165,000 (5.094%) **Police Department Public Safety and Protection Projects, including the replacement and equipping of police cars, upgrading communication equipment, purchasing needed equipment for training and investigations, replacing outdated computers and software, upgrading facilities and matching grant opportunities.** This funding is critical in ensuring our police are properly equipped to provide public safety.
- \$400,000 (0.941%) **Community Recreation & Events Department Right-of-Way Maintenance for routine upkeep, preservation, and replacement of landscape enhanced City rights-of- way. Costs include equipment, materials, supplies, and labor for tree pruning, tree replacement, snow removal, mowing, weed control, debris removal and irrigation.** This funding is needed to provide safe and well-maintained landscaping in City rights-of-way.
- \$1,573,000 (3.701%) **Community Recreation & Events Department Facilities, Equipment, Grounds and Programs.** This funding is needed to maintain public health, safety, and enhancement of Cheyenne's parks and recreational resources. This funding may also be used to meet grant fund matching requirements.
- \$717,000 (1.687%) **Equipment, vehicles, facility repairs, computers, software, and their related costs of installation/implementation for various City and associated agencies excluding Street & Alley, Traffic, Police, Fire and Community Recreation & Events. Department/agency heads submit requests for this funding to the Mayor annually.**
- \$282,000 (0.664%) **City County Health Department.** This funding is needed to maintain and replace vehicles and equipment and provide mileage reimbursement to employees who drive their privately-owned vehicles to complete their assigned duties.
- \$90,000 (0.212%) **Animal Shelter.** This funding is needed to maintain and replace vehicles and equipment.
- \$240,000 (0.565%) **Airport Board.** This funding is used to pay annual lease contracts for properties where the following facilities are located: Weed and Pest Operations (\$3,750), Compost Facility (\$32,812), and Community Recreation & Events Converse Softball and Baseball Fields (\$23,438).
- \$1,000,000 (2.353%) **Human Services Agencies. These funds provide direct financial support to local agencies as recommended by the Human Services Advisory Council (HSAC) and approved by the governing body.** The HSAC is a joint advisory council consisting of City, County and United Way appointees created to provide recommendations to each governing body concerning human services matters. This process provides agencies a single application, review and hearing process for funding requests and develops a system to monitor effectiveness of funds committed.
- \$800,000 (1.882%) **Cheyenne-Laramie County Joint Powers Economic Development Board. These funds are used to assist with the expansion, retention and recruitment of businesses by providing financial incentives and infrastructure so that Cheyenne and Laramie County can diversify the economy by retaining and creating jobs.** The purpose of the Cheyenne-Laramie County Economic

Development Joint Powers Board is to enhance the economy of Cheyenne and Laramie County. The Board may use the optional one percent tax to assist Cheyenne LEADS by providing funding for business recruitment and infrastructure development; sponsor reports or publications that provide economic, business, or industry data or market reports; and provide financial incentives or funding of special projects to encourage businesses to expand or relocate to Cheyenne and Laramie County. These funds may be used as grant match for associated opportunities, full or partial grant, or loaned out upon approval by the Board.

Total of all Projects under City's Share of the Optional One Percent Sales Tax for calendar years 2019 through 2022 inclusive: \$42,500,000 (100%)

BE IT FURTHER RESOLVED that interest earned from Optional One Percent Sales Tax funds will be used to pay administration and management costs of one percent sales tax projects and pay \$10,500 of the costs of United Way administering Human Services Agency funding. Designated project funding saved by performing in-house engineering design or construction management may be used to offset administration and management costs of one percent sales tax projects.

BE IT FURTHER RESOLVED that all funds realized from the 2019-2022 Optional One Percent Sales Tax shall be spent to complete one percent sales tax projects. Funds collected from the Optional One Percent Sales Tax which exceed the estimate of \$42,500,000 are for the purposes of this resolution described as "overage funds." Overage funds shall first be used to pay administration and management costs of one percent sales tax projects, if any, not covered by other funds allocated in this resolution. Remaining overage funds will be distributed as follows: 80% shall be allocated to Street and Road Maintenance, Drainage, and Construction projects listed on page 2 of this resolution; 5% shall be allocated to the Public Works Department for City Operations and Maintenance Projects; and 15% shall be allocated to Other Projects and Agencies in the following percentages for use as described on page 3 of this resolution: Fire and Rescue Department 17.46%; Police Department 30.67%; Community Recreation & Events Department 22.28%; Equipment and Facilities for Various City Agencies 10.16%; City County Health Department 3.99%; Animal Shelter 1.28%; and Human Services 14.16%.

BE IT FURTHER RESOLVED that if revenue from the Optional One Percent Sales Tax is below the \$42,500,000 estimate, the governing body will hold a public meeting and reallocate funding by resolution.

PRESENTED, READ AND ADOPTED ON THIS ____ DAY OF _____, 2018.

Marian J. Orr, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk